

CV-24-004750 GOODY, JAMES JOSEPH vs FARINELLI, ALBERT - Defendants Yolanda Arnette McCoy and Eulene Ramsey's Motion for Summary Judgment - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: This matter was originally set for hearing on August 21, 2026. Trial is scheduled to begin on September 22, 2026. The Court has found good cause to hear this matter within 30 days of trial, as the Court had a scheduling conflict and needed to move the hearing on its own motion from August 21 to August 28, 2026. On August 28, 2026, Plaintiff's counsel appeared to say handling counsel had resigned from the firm and requested a continuance of the hearing. I granted the continuance and said the tentative ruling, if unchallenged, would be confirmed. If the tentative ruling is challenged, I will hear argument based on the current state of the pleadings. Governing Law A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one sufficient to support the position of the party in question." (Id. at p. 851.) A defendant meets their burden of showing that a cause of action has no merit if the party shows that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c(p)(2).) Once the defendant meets that burden, the burden shifts to the plaintiff, who must show that "a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.) "Because of the drastic nature of the summary judgment procedure and the importance of safeguarding the adverse party's right to a trial, the moving party must make a strong showing. His affidavits are strictly construed and the opposing party's are liberally construed." (Garcia v. World Savings, FSB (2010) 183 Cal.App.4th 1031, 1038.) All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment or adjudication. (Barber v. Marina Sailing, Inc. (1995) 36 Cal.App.4th 558, 562.) Thus, evidence that is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant's burden. (Anderson v. Metalclad Insulation Corp. (1999) 72 Cal.App.4th 284, 297.) Discussion The Court finds that Defendants Yolanda Arnette McCoy and Eulene Ramsey ("Moving Defendants") have carried the initial burden of demonstrating entitlement to judgment pursuant to the application of the "sudden emergency" or "imminent peril" doctrine. Specifically, the evidence submitted with the motion supports the conclusion that Defendant McCoy acted with reasonable care and was suddenly and unexpectedly confronted by an emergency she did not cause. (See UMF Nos. 1, 6-7, 9-10, 13-14; Shiver v. Laramie (2018) 24 Cal.App.5th 395, 397.) The burden then shifts to Plaintiff to submit admissible evidence demonstrating the existence of a material factual dispute preventing judgment as a matter of law. The Court finds that Plaintiff failed to meet his burden. Preliminarily, the Court notes that the memorandum in opposition to the motion has arguments which do not appear to pertain to this case. In his separate statement, Plaintiff disputed UMF Nos. 8, 11, 15, and 16. (UMF No. 12 is also disputed, but that raises a minor issue that is not critical to deciding this motion.) All of Plaintiff's disputed facts rely on the same set of evidence: Exhibit A, p. 37:20-23, and pp. 46:21-47:3. The cited portions state as follows: 20 Q. · Ms. McCoy, how long was the green Mustang 21· traveling behind you on Oakdale-Waterford Highway on 22· the date of the incident? 23· · · ·A. · · For about two or -- two minutes. *** 21 Q. · And when law enforcement arrived, did you 22· give them a statement? 23· · · ·A. · · Yes. 24· · · ·Q. · And what was that statement? 25· · · ·A. · · I said he was driving behind me, and he 1· was merging in and out of traffic -- or in and out 2· from around me trying to see how to pass.· And the 3· third time he passed, he hit the lady and my car. Plaintiff's arguments in opposition to UMF Nos. 8, 11, 15, and 16 are as follows: - For both UMF Nos. 8 and 15, Plaintiff contends, "Plaintiff attempted to pass the Defendant driver several times, but her actions prevented Plaintiff from passing safely;" - For UMF No. 11, Plaintiff states, "Defendant was driving slower than the actual speed limit, and was impeding traffic, and the Plaintiff from passing safely;" and - For UMF No. 16, Plaintiff asserts, "Defendant could have pulled over to the side to allow traffic to proceed. Nothing prevented the Defendant from safely pulling over to allow Plaintiff safely pass." The cited evidence does not adequately support any of these assertions. Specifically, the deposition passages do not show that it was Defendant's actions that prevented Plaintiff from passing safely; that Defendant McCoy was driving slower than the speed limit; that Defendant McCoy was impeding traffic; or that there was nothing preventing Defendant McCoy from safely pulling over to allow Plaintiff to pass. Because the Plaintiff's statement of disputed facts lacks material evidentiary support, the Court deems Moving Defendants' statement of facts undisputed. Consequently, the motion for summary judgment is GRANTED. The Court notes that Plaintiff included his own deposition as evidence but never cited to it. If the inclusion was an implicit invitation for the Court to review the deposition testimony for triable issues, the Court declines that invitation. The Court will sign the proposed order that was submitted with the motion. In addition, Moving Defendants are instructed to submit a proposed judgment within five court days. All future dates are vacated and a Case Status Review is set for October 30, 2026 at 8:30 a.m. in Dept. 21. That date will be vacated upon signing of the judgment.

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Governing Law

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"Because of the drastic nature of the summary judgment procedure and the importance of safeguarding the adverse party's right to a trial, the moving party must make a strong showing. His affidavits are strictly construed and the opposing party's are liberally construed." (Garcia v. World Savings, FSB (2010) 183 Cal.App.4th 1031, 1038.) All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment or adjudication. (Barber v. Marina Sailing, Inc. (1995) 36 Cal.App.4th 558, 562.) Thus, evidence that is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant's burden. (Anderson v. Metalclad Insulation Corp. (1999) 72 Cal.App.4th 284, 297.)

Discussion

The Court finds that Defendants Yolanda Arnette McCoy and Eulene Ramsey ("Moving Defendants") have carried the initial burden of demonstrating entitlement to judgment pursuant to the application of the "sudden emergency" or "imminent peril" doctrine. Specifically, the evidence submitted with the motion supports the conclusion that Defendant McCoy acted with reasonable care and was suddenly and unexpectedly confronted by an emergency she did not cause. (See UMF Nos. 1, 6-7, 9-10, 13-14; Shiver v. Laramie (2018) 24 Cal.App.5th 395, 397.)

The burden then shifts to Plaintiff to submit admissible evidence demonstrating the existence of a material factual dispute preventing judgment as a matter of law. The Court finds that Plaintiff failed to meet his burden.

Preliminarily, the Court notes that the memorandum in opposition to the motion has arguments which do not appear to pertain to this case.

In his separate statement, Plaintiff disputed UMF Nos. 8, 11, 15, and 16. (UMF No. 12 is also disputed, but that raises a minor issue that is not critical to deciding this motion.)

All of Plaintiff's disputed facts rely on the same set of evidence: Exhibit A, p. 37:20-23, and pp. 46:21-47:3. The cited portions state as follows:

20 Q. · Ms. McCoy, how long was the green Mustang

21· traveling behind you on Oakdale-Waterford Highway on

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1· was merging in and out of traffic -- or in and out

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3· third time he passed, he hit the lady and my car.

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- For UMF No. 16, Plaintiff asserts, "Defendant could have pulled over to the side to allow traffic to proceed. Nothing prevented the Defendant from safely pulling over to allow Plaintiff safely pass."

The cited evidence does not adequately support any of these assertions. Specifically, the deposition passages do not show that it was Defendant's actions that prevented Plaintiff from passing safely; that Defendant McCoy was driving slower than the speed limit; that Defendant McCoy was impeding traffic; or that there was nothing preventing Defendant McCoy from safely pulling over to allow Plaintiff to pass.

Because the Plaintiff's statement of disputed facts lacks material evidentiary support, the Court deems Moving Defendants' statement of facts undisputed. Consequently, the motion for summary judgment is GRANTED.

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The Court will sign the proposed order that was submitted with the motion. In addition, Moving Defendants are instructed to submit a proposed judgment within five court days.

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